POLICY ON SEXUAL HARASSMENT (POSH) OF WOMAN AT WORKPLACE

DOCUMENT HISTORY

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POLICY ON SEXUAL HARASSMENT (POSH) OF WOMAN AT WORKPLACE

1. Commitment

Our Company "**Arche Global Pvt Ltd**" (herein after referred as "Company") is committed for providing work environment free from sexual harassment. Company ensures that every woman is treated with dignity and respect to carry any profession, occupation, trade, or business. Our Company will not tolerate any form of sexual harassment and will take all reasonable steps to prevent and redressal of complaints for sexual harassment and matters connected therewith.

Company will further ensure that no women employed in the company shall be subjected to sexual harassment by any colleague / associated third party during the course of her employment with the company. It will also take necessary steps to prevent and ensure that no woman whether employed or not, who comes in to contact with the company shall be subjected to sexual harassment.

Sexual harassment refers to any unwelcome behavior that is personally offensive and interferes with work effectiveness and amounts to sexual harassment as defined in the policy hereunder. Such actions, if committed, may result into disciplinary action, up to and including separation from the company and appropriate legal action.

Where any compliant of any act of sexual harassment is received, Company shall take all necessary steps to assist the aggrieved woman (as defined hereunder) and to redress the grievance caused. All complaints or allegations of sexual harassment will be investigated promptly by the Internal Committee (IC) constituted by the management. Appropriate corrective action will be implemented based on the findings and recommendations of the Internal Committee (IC)

2. Objective

The policy has been framed keeping in view the provisions under The Sexual Harassment of Woman at Workplace (Prevention, Prohibition and Redressal) Act 2013 (herein after referred as "Act") and the Rules made thereunder. The said policy is to define the guidelines and the process to be followed in order to provide protection against sexual harassment to the "aggrieved woman "as defined in the policy. For doubts and further clarification, reference will be made to the abovementioned Act and rules framed thereunder.

3. Scope

"This policy applies to all categories of employees of the Company employed in the workplace or at client places for any work on regular, temporary ad hoc or daily wages basis, either directly or through an agent

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including a contractor with or without the knowledge of the principal employer whether for remuneration or not or working on a voluntary basis or otherwise whether the terms of employment are express or implied and includes a co-worker, a contract worker, probationer, trainee, apprentice or called by any other name.

The workplace includes:

1. All offices or other premises where the Company's business is conducted.
2. All company-related activities performed at any other site away from the Company's premises.
3. Any social, business or other functions where the conduct or comments may have an adverse impact on the workplace or workplace relations.

The Company will not tolerate sexual harassment, if engaged in by clients or by vendors or any other business associates. It shall also be applicable for such woman who may face such harassment within the office premises of the company or at a place where the said woman has gone in connection with the work or the workplace, or at any place whatsoever, including the transportation provided by the company for any journey conducted in connection with the work. Also, no person employed at the company shall sexually harass a woman who visit company's premises.

4. Definition

Aggrieved Woman

Aggrieved woman means; - In relation to a workplace, a woman of any age whether employed or not, who alleges to have been subjected to any act of sexual harassment by respondent.

Respondent

Respondent means: -A person against whom the aggrieved woman has made a compliant.

Sexual Harassment

Sexual harassment may be one or a series of incidents involving unwelcoming sexually determined behavior as physical contacts and advances, sexually colored remarks, showing pornography and sexual demands, whether by words or actions.

Sexual Harassment at the workplace includes:

- Physical contact and advances or
- Demand or request for sexual favors, or
- Making sexual colored remarks or
- Showing pornography or

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- Any other unwelcome physical, verbal or non-verbal conduct of sexual nature.

The following circumstances, if it occurs or is present in relation to or connected with any act or behavior of sexual harassment may amount to sexual harassment: -

(i) Implied or explicit promise of preferential treatment in her employment or
(ii) implied or explicit promise of detrimental treatment in her employment or
(iii) implied or explicit threat about her present or future employment status or
(iv) interference with her work or creating an intimidating or offensive or hostile work environment for her, or
(v) humiliating treatment is likely to affect her health or safety.

5. If you are harassed as Aggrieved Woman?

- Tell the respondent that his behavior is unwelcome and ask him to stop.
- Keep a record of incidents (dates, times, locations, possible witness, what happened, your response). It is not mandatory to have a record of events to file a complaint, but a record can strengthen your case and help you remember the details over time, in case the complaint is not filed immediately.
- File a complaint as soon as possible. If, after asking the accused to stop his behavior, the harassment continues, report the abuse to the Internal Committee('IC") formed for this purpose.

6.Responsibilities regarding Sexual Harassment

All employees of the Company have a personal responsibility to ensure that their behavior is not contrary to this policy. All employees are encouraged to reinforce the maintenance of a work environment free from sexual harassment.

7.Internal Committee

The Company has constituted an Internal Committee for redressal of sexual harassment complaint (made by the aggrieved woman) and for ensuring time bound treatment of such complaints.

The name of Presiding officer and Internal Committee Members (IC) are enclosed herewith as Annexure A.

The Internal Committee shall be responsible for:

- Investigating every formal written complaint of sexual harassment
- Taking appropriate remedial measures to respond to any substantiated allegations of sexual harassment
- Discouraging and preventing employment-related sexual harassment

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When an incident of sexual harassment occurs, the aggrieved woman can communicate her disapproval and objections immediately to the harasser/ respondent and request the harasser /respondent to behave decently. If the harassment does not stop or if victim is not comfortable with addressing the harasser / respondent directly, the aggrieved woman can bring her concern to the attention of the Complaints Committee for redressal of grievances.

Provided further that where both the parties are employees, the parties shall during the course of inquiry be given an opportunity of being heard and a copy of the findings shall be made available to both the parties enabling them to make representation against the finding before the committee.

8 Procedures for Resolution, Settlement or Prosecution

A. Manner of Complaint of Sexual Harassment

(i) Any aggrieved woman may make, in writing, a complaint of sexual harassment at workplace to the Presiding officer of the Internal Committee within a period of three months from the date of incident and in case of a series of incidents, within a period of three months from the date of last incident.

Provided that where such complaint cannot be made in writing, the presiding officer or any Member of the Internal Committee, as the case may be, shall render all reasonable assistance to the woman for making the complaint in writing.

Provided further that the internal Committee for the reasons to be recorded in writing, extend the time limit not exceeding three months, if it is satisfied that the circumstances were such which prevented the woman from filing a complaint within the said period.

(ii) Where the aggrieved woman is unable to make a complaint on account of her physical or mental in capacity or death or otherwise, her legal heir or such other person as may be prescribed may make a complaint under this section.

B. Conciliation

- The Internal Committee may, before initiating any inquiry and at the request of the aggrieved woman take steps to settle the matter between her and the respondent through conciliation. Provided that no monetary settlement shall be made as a basis of conciliation.

- Where a settlement has been arrived at, the Committee shall record the settlement so arrive and forward the same to the Board of Directors to take necessary action in this regard.

- The Internal Committee shall provide the copies of the settlement as recorded to the aggrieved woman and the respondent.

- Where a settlement is arrived at, no further inquiry shall be conducted by the Internal Committee. Provided that where the aggrieved woman informs the Committee, as the case may be, that any term or condition of

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the settlement arrived at has not been complied with by the respondent, the Committee shall proceed to make an inquiry into the complaint or, as the case may be, forward the complaint to the police.

C. Inquiry into Complaint

- If the Aggrieved Woman does not request for a settlement, then on receipt of such compliant, the committee will immediately arrange to fully investigate all relevant details of the matter
- The IC shall make the inquiry into the compliant in accordance with the principles of Natural Justice.
- A minimum number of three members of the committee including the Presiding Officer should be present for conducting an inquiry.
- Both parties will be given reasonable opportunities to be heard by the IC. A copy of the findings shall also be given to both parties to enable them to make representations against the findings before the committee.
- The inquiry will be completed within 90 days. Further within 10 days of the completion inquiry, the committee will formally record the result of the inquiry and forward its recommendations for appropriate action to the Board of Director's who will act upon such recommendations to the committee within 60 days.
- An appeal to the decision of the committee may be preferred within a period of 90 days to a court or tribunal as may be prescribed under the Act.
- For the purpose of making an inquiry as mentioned above, the Committee shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908, when trying a suit in respect of the following matters, namely

i) Summoning and enforcing the attendance of any person and examining him on oath.

ii) Requiring the discovery and production of documents; and

iii) Any other matter which may be prescribed.

D. Action that may be taken by the Committee during pendency of the Inquiry

During the pendency of an inquiry, on a written request made by the aggrieved woman, the Committee may take the following actions: -

- Transfer the aggrieved woman or the respondent to any other workplace; or
- Grant leave to the aggrieved woman up to a period of three months; or
- Grant such other relief to the aggrieved woman as may be prescribed.

The leave granted to the aggrieved woman shall be in addition to the leave she would be otherwise entitled.

E. Inquiry Report and Action

(i) Where the Committee arrives at the conclusion that the allegation against the respondent has not

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been proved, then no action is required to be taken on the matter.

(ii) Where the Committee and Board of Directors together arrives at the conclusion that the allegation against the respondent has been proved, it may take the following actions depending upon the circumstances:

- Formal apology
- Counselling
- Written warning to the Respondent and a copy of it maintained in the employee's file.
- Change of work assignment / transfer for either the Respondent or the Complainant.
- Suspension or termination of services of the employee found guilty of the offence
- Granting compensation or damages to the Complainant

G. False or Malicious Complaint

(i) Where the Committee arrives at a conclusion that the allegation against the respondent is malicious or the aggrieved woman or any other person making the complaint has made the complaint knowing it to be false or the aggrieved or any other person making the complaint has produced any forged or misleading document, the Complainant shall, be liable for appropriate disciplinary action by the Board of Directors.

Provided that a mere inability to substantiate a complaint or provide adequate proof need not attract action against the complainant.

Provided further that the malicious intent on part of the complainant shall be established after an inquiry in accordance with the procedure prescribed, before any action is recommended

(ii) Where the Committee arrives at the conclusion that during the inquiry any witness has given false evidence or produced any forged or misleading document, it may recommend to the Board of Directors to take necessary actions in this regard.

G. Compensation

For the purpose of determining the sums, if any to be paid to the aggrieved woman, the Committee shall consider the following while arriving at the compensation:

- the mental trauma, pain, suffering and emotional distress caused to the aggrieved woman.
- the loss in the career opportunity due to the incident of sexual harassment.
- medical expenses incurred by the victim for physical or psychiatric treatment

9. Confidentiality

The Company understands that it is difficult for the victim/ aggrieved woman to come forward with a complaint of sexual harassment and recognizes the victim/ aggrieved woman's interest in keeping the

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matter confidential.

To protect the interests of the victim /aggrieved woman, the accused person and others who may report incidents of sexual harassment, confidentiality will be maintained throughout the investigatory process to the extent practicable and appropriate under the circumstances.

10. Access to Reports and Documents

All records of complaints, including contents of meetings, results of investigations and other relevant material will be kept confidential by the Company except where disclosure is required under disciplinary or other remedial processes

11. Protection to Complainant / Victim

The Company is committed to ensuring that no employee who brings forward a harassment concern is subject to any form of reprisal. Any reprisal will be subject to disciplinary action. The Company will ensure that the victim or witnesses are not victimized or discriminated against while dealing with complaints of sexual harassment.

However, anyone who abuses the procedure (for example, by maliciously putting an allegation knowing it to be untrue) will be subject to disciplinary action.

12 Creating Awareness & Review of policy

Company will organize awareness program at regular intervals for sensitizing the employees with the provisions of policy and act and the orientation program for the members of the internal committee.

The company will also review the policy on regular intervals to incorporate the futures changes / amendments in the Act.

13. Conclusion

In conclusion, the Company reiterates its commitment to providing its women employees, a workplace free from harassment/ discrimination and where every employee is treated with dignity and respect.

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Annexure A

As per clause 4 of The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act 2013 and as per the clause 7 of the Policy on Sexual Harassment (POSH) of Woman at Workplace, Board of Directors of the Arche Global Pvt Ltd have constituted the Internal Committee consisting of following members with effect from 1st Feb 2025.

INTERNAL COMMITTEE

Presiding Officer	• **Mrs. Ramya Shrikrishnan** **Mobile – 9884220625** **Email – ramya.s@arche.global**
Internal Committee Members	• A.R. Michael Raj • Jinu P • Nithya S • Sudhakar Gummadi • Manjushree DN • Sumathi Sabaresh • Virupakshappa Sangappa • Poonam Vitthal Rao Deshmukh • Kowsalya S • Elangovan J • Prasenjit Bose
External Member	• Sarada Ramani

Authorized Signatory

Bobby MD
Chief Executive Officer

Date:18th July 2025

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